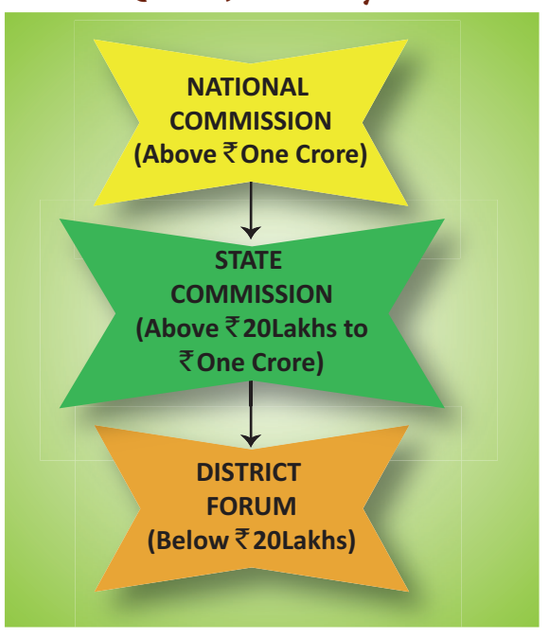
a country like India there is shortage of many products. A few firms enjoy monopoly power in the market place. A large majority of consumers are ignorant and illiterate and do not know their rights. They are poor and there is lack of unity among them. Due to these reasons, consumers are often deprived of their rights. They are often exploited through misleading advertisements, poor quality goods, fractional weights and measures, overcharging, etc.

18.02 Consumer Councils

The Consumer Protection Act postulates establishment of Consumer Protection Councils at the District, State and Central levels for the purpose of spreading consumer awareness. The objects of the Councils, as per the Act, shall be to promote and protect the rights of the consumers.

18.03 Three Tier Courts or Quasi Judiciary



18.04 District Forum

As per the Consumer Protection Act of 1986 and Section 9 thereof the establishment of a District Forum by the State Government in each district is necessary today to protect the interest of aggrieved consumers in that district. The State Government can establish more than one District Forum in a district if it deems fit to do so.

Complaints can be filed with the forum by a consumer. Complaints can also be filed by the Central or State Government or by a group of consumers. Thus, it is not necessary that complaint should be filed only by the affected person. Others can also take up the matter with the District Forum.

Members

1. A person who is or who has been or is qualified to be, a District Judge as its President.
2. Two other members who shall be persons of ability, integrity and standing and have adequate knowledge or experience of or who have shown their capacity in dealing with problems relating to economics, law, commerce, accountancy, industry, public affairs or administration. It is insisted in the Act that out of such two other members' one shall be a woman.

Jurisdiction

The District Forum can entertain complaints within the territory of genuine district and where the value of goods or services and the compensation if any claimed is less than Rs 20 Lakhs.

Powers

Every proceedings before the District Forum shall be deemed to be judicial proceedings within the meaning of sections 193 and 228 of the Indian Penal Code and the Forum shall be deemed to be Civil Court.

If the value of the complaint exceeds this limit of Rs 20 Lakhs the complaint should be made direct to the State Commission. Further the District Forum also may pass orders against traders indulging in unfair trade practices, sales of defective goods or rendering deficient services, the turnover of goods or value of services does not exceed Rs 20 Lakhs.

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